Detailing Deaths Behind Bars: 2020-2024

The Texas Justice Initiative (TJI) is a nonprofit organization that collects, analyzes, publishes and provides oversight for criminal justice data throughout Texas. This report outlines the progress of our work, funded by Arnold Ventures, to document and analyze the circumstances under which people are dying in custody of Texas prisons and jails.

I. Introduction

Each month, Texas Justice Initiative (TJI) files requests under the Texas Public Information Act for certain data related to deaths in custody in Texas and publishes the data online in interactive, downloadable visualizations. This data, provided by the state's Attorney General's office, includes the total number of deaths per year since 2005, demographics of decedents, the type of custody decedents were held in, the type of location where they died and causes of deaths.

Additionally, law enforcement agencies also submit a summary of each death in custody to the state of Texas. These summaries are open-ended text fields and entries range from the most concise to the very verbose. While the reports containing the aforementioned data and summaries are accessible and downloadable on a website operated by the Attorney General's office, collecting the reports is a time-consuming, cumbersome and manual process that involves downloading thousands of summaries and adding the text into our database. And, while the state publicly releases the data in the reports, the Attorney General's office has stated that the summaries would need to be redacted before being released.

TJI used our grant funding, in part, to analyze custodial death reports, in particular, the summaries of deaths. One hope was that analyzing the summaries might help identify problems or patterns.

Another project undertaken with the AV grant funding was a comparison of the state-held data on custodial deaths with the data collected under the federal Death in Custody Reporting Act (DCRA), which requires states to submit data related to deaths in custody on a quarterly basis to the Bureau of Justice Assistance. We were curious as to whether the federal data set was similar to the state data set.

II. Methodology

Our first — and largest — challenge was to gather the DCRA data. Initially, we were under the impression that the Texas Governor's Office was designated as the office responsible for submitting the quarterly data. As such, we submitted open records requests to the governor's office and received data in response that caused confusion, as it was a mixture of custodial death data and other data. After some clarification, we did receive a new data set that appeared to have been custodial death data broken down by month. Because it was still unclear what data the state officially submitted to BJA, in which quarter, we sought other sources.

In December 2024, we were informed that the DCRA data could be downloaded from the BJA's website. We were able to download the raw data and filter out all states other than Texas, leaving us with a clean data set. We decided to use these data for our analysis. (As of January, these data are no longer available in this way).

TJI then used Jupyter Notebooks and a Python scripting code to consolidate data and then identify and remove duplicate records. Overall, the data was consistent between the two datasets.

Simultaneously, we set out to analyze and better understand custodial deaths in Texas jails and prisons from January 1, 2020, to July 1, 2024. TJI download thousands of custodial death reports, cleaned the data, created a data warehouse for future automation of data and conducted an initial analysis of the summaries.

Jail and prison populations were explored separately, with 20% of deaths occurring in Texas jails and the vast majority (80%) occurring in prison. Within each type of facility, we also analyzed deaths under demographic categories including gender, age and race. Additionally, we examined the length of time between someone's incarceration and their death; and dug into the types of causes of death in jails and prisons. We also took a look at how many deaths result in a medical examiner ruling.

Lastly, we built a scraper to collect the more than 25,000 individual death reports that have been submitted to the state since 2005. Then, we created a process to automatically feed the scraped text into a cloud-based data warehouse that will populate our online dashboard. The data was cleaned to remove thousands of duplicate reports before being analyzed. Limitations of these summaries are described below.

III. Data Summary

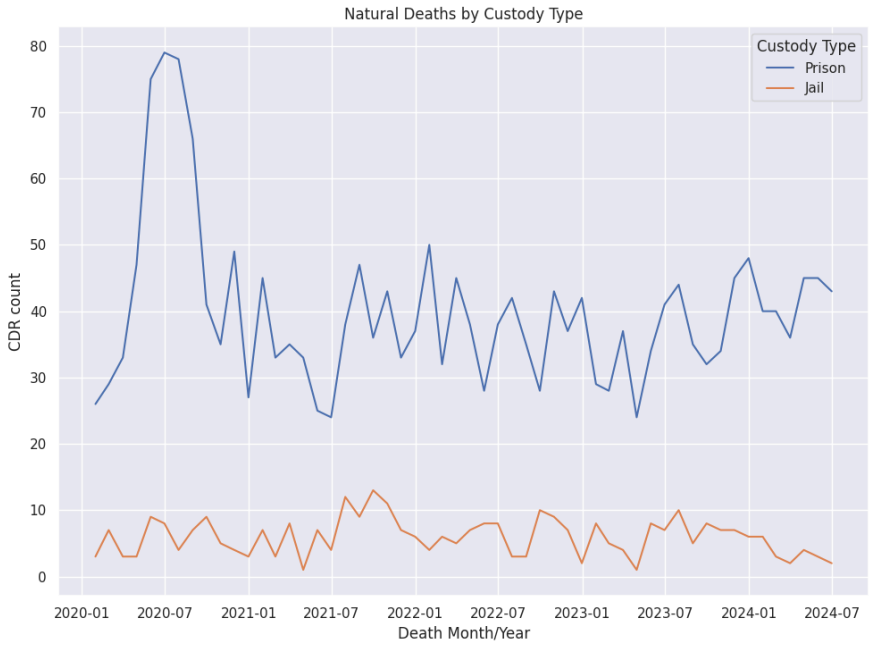
What did we find when comparing state-held custodial death report data and federally-held DCRA data?

When comparing data sets, we were able to match records with similar identifiers such as name, date of birth and death date. In a small number of cases, we identified differences in decedent information between the two datasets. During our analysis, we learned that a member of the Grants Administration Division obtains Texas' DCRA data by submitting an open records request to the Office of the Attorney General for the data from the custodial death reports submitted by agencies. The OAG releases the data in an excel spreadsheet and the federal grant administrators then review it, sort and clean it and input it into an internal system. Then, federal officials review the data and errors are corrected, but these corrections are not made in the state data sets.

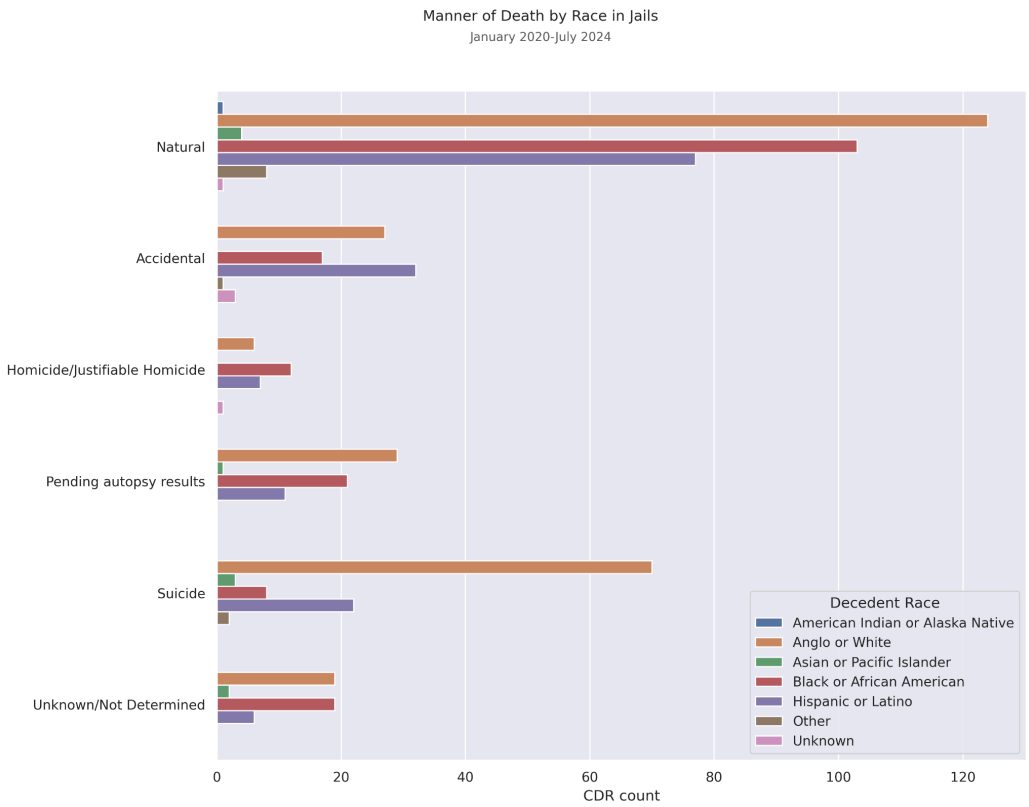
Overall, the DCRA data provided a good resource to validate the CDR data we have collected previously, but the difficulty in obtaining the data means we cannot leverage this data in any future projects.

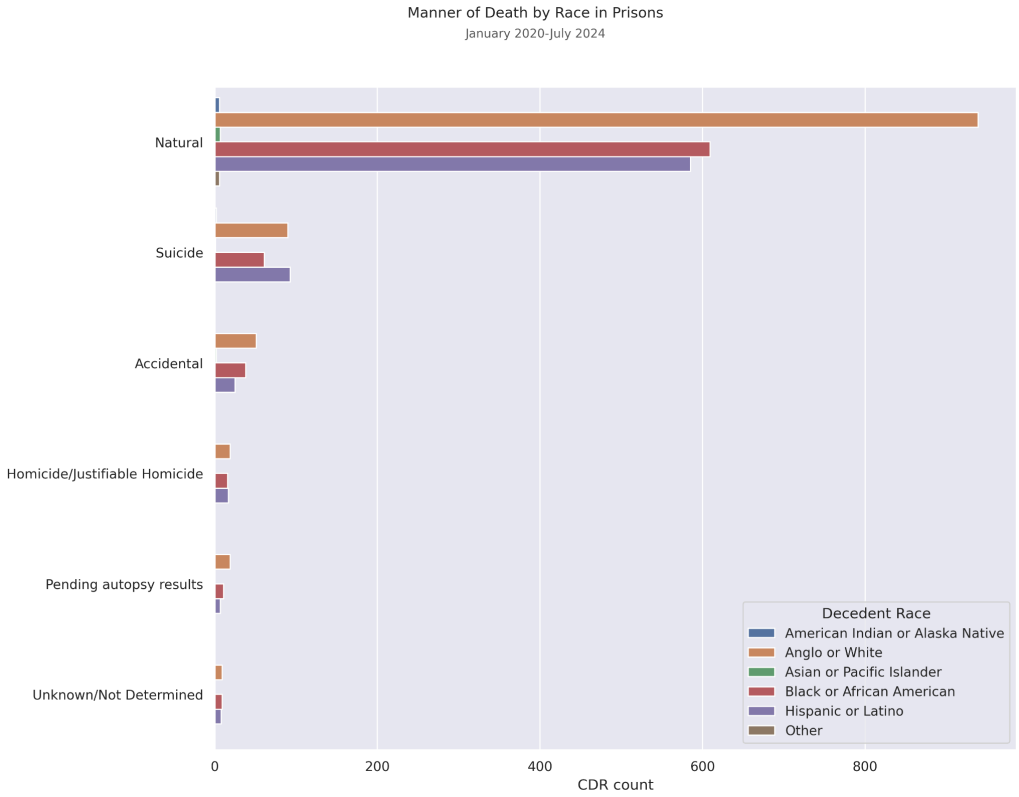
What insights can we glean from the state's custodial death report data about custodial deaths from 2019 to 2024?

- From 2020 to 2021, deaths of "natural" causes rose slightly in jails, but spiked significantly in Texas prisons.
- Natural deaths in Texas jails increased slightly in 2021, but have since returned to pre-pandemic levels.



- Regarding the plight of females in Texas incarceration facilities:
    - The daily average population count of women in Texas jails is similar to the daily count of women in Texas prisons — around 10,000 to 11,000 a day.
    - Yet, women are more likely to die in jails than they are in prisons. Some 14% of females died in jails, compared to only 3% of females who died in prisons.
- Regarding deaths of individuals in Texas prisons compared to deaths of individuals in Texas jails:
    - Dying by accident causes — including overdoses — is more common in Texas jails (13%) than in Texas prison (4%).
    - The percentage of individuals who die by suicide in jail is nearly 20%, while those who die by suicide in prison is 11%.
- Regarding the frequency of autopsy reports:
    - People who die in Texas jails are more likely to have an autopsy report completed (only 7% of autopsy reports are missing) than Texans who die in prisons (21% of autopsy reports are missing).
- Regarding the race and ethnicity of individuals who die in Texas prisons and jails:
    - Black population is over represented, especially in natural deaths in both prisons and jails, when considering the overall demographic breakdown of prison and jail populations.
    - White and Latino individuals were more likely to die by suicide in both prisons and jails than Black individuals in prisons and jails.
        - In Texas jails, 66% of the individuals who die by suicide are white, followed by 8% Black and 20% Latino.
        - Deaths by suicide in Texas prisons are 38% Latino, 37% white and 25% Black.





Do the text summaries enhance our understanding of how and why deaths occur in jails and prisons?

- The short answer is, it varies. The summaries are inconsistent but, on a whole, not incredibly insightful. Larger agencies have templated language, while smaller agencies' summaries tend to be longer and include more details.
- Most summaries are fairly concise:

    - 70% of summaries for deaths in Texas prisons and jails were fewer than 100 words;
    - 28% of summaries for deaths in Texas prisons and jails measured in length between 100 and 500; and
    - 2% of summaries for deaths in Texas prisons and jails measured longer than 500 words.
- Methamphetamines are mentioned the most frequently in deaths related to overdoses.
- On initial analysis, the type of crime an individual is incarcerated for appears to correlate with suicide, specifically in jails.
- Our analysis of text summaries for incidents of suicide showed inconsistency of language used to classify reason for the deaths. We found summaries describing where the person was found dead, in what manner they died, how they were discovered and what steps were taken. While there were some summaries that told a clear story, for the most part, summaries varied greatly and do not reveal patterns in how and why suicides are occuring in jails and prisons.

IV. Next Steps

In partnership with the criminal justice department at Our Lady of the Lake University, TJI will continue to evaluate the data with plans to release a full report later this year that builds on our initial analysis. We will complete a more conclusive quantitative and qualitative analysis, to include multilevel modeling that will examine characteristics unique to each death (the age, sex and race/ethnicity of the individual who died, the year of the death, crime convicted of or in jail for, key words identified such as detox, alone, suicide and whether the individual died of a pre-existing medical condition). Level 2 modeling will examine characteristics of the facilities, the actual Texas jails and prisons. We will also be looking at a longer time period than the past four years to see how trends have changed - both positive outcomes as well as negative.

V. Acknowledgments

Our experienced team comprises Eva Ruth Moravec, a journalist and founder and executive director of the Texas Justice Initiative; Elaine Ayo, a data and software engineer; Kaitlyn Wallce, business data analyst; Jiletta Kubena, a criminologist; and Bergan Casey, communications specialist.

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